

STATE OF INDIANA)
) SS:
COUNTY OF LA PORTE)
IN THE LA PORTE CIRCUIT COURT
CAUSE NO. 46C01-2104-CT-000750

EDUARDO DOMINGUEZ-ROQUE

VS.

FAEZ ALSAFFAR and CLASSIC
TRANSPORTATION SERVICES, INC.

COMPLAINT FOR DAMAGES

Comes now the Plaintiff, Eduardo Dominguez-Rogue, by counsel, Troy K. Rivera of Ken Nunn Law Office, and for his cause of action against the Defendants, Faez Alsaffar and Classic Transportation Services, Inc., alleges and states as follows:

STATEMENT AND JURISDICTION

1. This is a clear liability collision in which Defendants' 2005 Freightliner tractor and attached trailer was negligently driven by Faez Alsaffar, causing a collision with the tractor trailer driven by Plaintiff, Eduardo Dominguez-Roque. As a result of the collision, Plaintiff has incurred medical expenses, lost wages, and other special expenses in an amount to be proven at trial of this cause.

2. Jurisdiction and venue are appropriate in La Porte County, Indiana, as said collision occurred within the boundaries of La Porte County, State of Indiana.

FIRST CAUSE OF ACTION

NEGLIGENCE OF FAEZ ALSAFFAR

3. Plaintiff realleges and incorporates herein by reference paragraphs 1 through 2 above as if fully restated verbatim.

4. On or about September 3, 2019, Defendant Faez Alsaffar negligently drove a tractor-trailer striking the tractor-trailer driven by Plaintiff, Eduardo Dominguez-Roque.

5. Defendant Faez Alsaffar had a duty to operate his tractor trailer in a safe and reasonable manner.

6. Defendant Faez Alsaffar failed in the above mentioned duties and is therefore negligent.

7. Defendant Faez Alsaffar's negligence was the direct and proximate cause of Plaintiff's injuries.

8. Plaintiff Eduardo Dominguez-Roque's injuries and damages are permanent.

9. As a direct and proximate result of Faez Alsaffar's negligence, Eduardo Dominguez-Roque has suffered lost wages.

10. Plaintiff Eduardo Dominguez-Roque has incurred medical bills for the treatment of his injuries directly resulting from this collision.

11. As a direct and proximate result of Faez Alsaffar's negligence, Eduardo Dominguez-Roque has experienced physical and mental pain and suffering, lost wages, and has lost the ability to perform usual activities, resulting in a diminished quality of life.

SECOND CAUSE OF ACTION

NEGLIGENCE PER SE OF FAEZ ALSAFFAR

12. Plaintiff realleges and incorporates herein by reference paragraphs 1 through 11 above as if fully restated verbatim.

13. Faez Alsaffar violated state and federal statutes and regulations including but not limited to Title 9 of the Indiana Code.

14. Defendant Faez Alsaffar's statutory violations directly and proximately caused Plaintiff's damages and injuries.

15. Defendant Faez Alsaffar is negligent per se based on these statutory and regulatory violations.

THIRD CAUSE OF ACTION

RESPONDEAT SUPERIOR OF CLASSIC TRANSPORTATION SERVICES, INC.

16. Plaintiff realleges and incorporates herein by reference paragraphs 1 through 15 above as if fully restated verbatim.

17. Defendant Faez Alsaffar was the employee, agent, servant, or independent

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